

SENATE BILL 761

By Yager

AN ACT to amend Tennessee Code Annotated, Title 40,
Chapter 32, relative to expunction.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-32-101(g)(2)(B), is amended by deleting the subdivision and substituting:

(B) At the time of the filing of the petition for expunction at least:

(i) Five (5) years have elapsed since the completion of the sentence imposed for the offense the person is seeking to have expunged, if the offense is a misdemeanor or Class E felony;

(ii) Eight (8) years have elapsed since the completion of the sentence imposed for the offense the person is seeking to have expunged, if the offense is a Class D felony; or

(iii) Ten (10) years have elapsed since the completion of the sentence imposed for the offense the person is seeking to have expunged, if the offense is a Class C felony; and

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.